

DIMARCELLO 21-1096

PLAINTIFF: WOODBRIDGE MEADOWS APARTMENTS LLC DBA WOODBRIDGE DEFENDANT: ANTHONY DIMARCELLO	CASE NUMBER:
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4. Federal law allegations

- a. Defendant ☐ has ☒ has not provided a statement under penalty of perjury for the Centers for Disease Control and Prevention's order for *Temporary Halt in Evictions to Prevent Further Spread of COVID-19* (85 Federal Register 55292) or its extension. (Note to plaintiff: Proceeding in violation of the federal order may result in civil or criminal penalties.)
- b. This action ☐ does ☒ does not seek possession of a dwelling unit in property that has a federally backed multifamily mortgage for which forbearance has been granted under title 15 United States Code section 9057.
- (1) Date forbearance began
- (2) Date forbearance ended

5. ☐ Unlawful detainer notice expired before March 1, 2020

The unlawful detainer complaint in this action is based solely on a notice to quit, to pay or quit, or to perform covenants or quit, in which the time period specified in the notice expired before March 1, 2020. (If this is the only basis for the action, no further items need to be completed except the signature and verification on page 4. (Code Civ. Proc., § 1179.03.5(a)(1).))

6. ☐ Rent or other financial obligations due between March 1, 2020, and August 31, 2020 (protected time period)

The unlawful detainer complaint in this action is based, at least in part, on a demand for payment of rent or other financial obligations due in the protected time period. (Check all that apply.)

- a. ☐ Defendant (name each):

was served the "Notice from the State of California" required by Code of Civil Procedure section 1179.04, and if more than one defendant, on the same date and in the same manner. (Provide information regarding service of this notice in item 8 below.)

- b. ☐ One or more defendants was served with the notice in item 6a on a different date or in a different manner, which service is described in attachment 8c.
- c. ☐ Defendant (name each):

was served with at least 15 days' notice to pay rent or other financial obligations, quit, or deliver a declaration, and an unsigned declaration of COVID-19-related financial distress, in the form and with the content required in Code of Civil Procedure section 1179.03(b) and (d).

(If the notice identified defendant as a **high-income tenant** and requested submission of documentation supporting any declaration the defendant submits, complete item 9 below. (Code Civ. Proc., § 1179.02.5(c).))

(If filing form UD-100 with this form and item 6c is checked, specify this 15-day notice in item 9a(7) on form UD-100, attach a copy of the notice to that complaint form, and provide all requested information about service on that form.)

- d. Response to notice (check all that apply):

- (1) ☐ Defendant (name each):

delivered a declaration of COVID-19-related financial distress on landlord in the time required. (Code Civ. Proc., § 1179.03(f).)

- (2) ☐ Defendant (name each):

did *not* deliver a declaration of COVID-19-related financial distress on landlord in the time required. (Code Civ. Proc., § 1179.03(f).)

7. ☒ Rent or other financial obligations due between September 1, 2020, and June 30, 2021 (the transition time period)

The unlawful detainer complaint in this action is based, at least in part, on a demand for payment of rent or other financial obligations due during the transition time period.

- a. ☒ Defendant (name each):

ANTHONY DIMARCELLO

was served the "Notice from the State of California" required by Code of Civil Procedure section 1179.04, and if more than one defendant, on the same date and in the same manner. (Provide information regarding service of this notice in item 8 below.)

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7. b. ☐ One or more defendants was served with the notice in Item 7a on a different date or in a different manner, which service is described in attachment 8c.

c. ☒ Defendant (name each):
ANTHONY DIMARCELLO

was served with at least 15 days' notice to pay rent or other financial obligations, quit, or deliver a declaration, and an unsigned declaration of COVID-19-related financial distress, in the form and with the content required in Code of Civil Procedure section 1179.03(c) and (d).

(If the notice identified defendant as a **high-income tenant** and requested submission of documentation supporting any declaration the defendant submits, complete Item 9 below. (Code Civ. Proc., § 1179.02.5(c).))

(If filling form UD-100 with this form and item 6c is checked, specify this 15-day notice in item 9a(7) on form UD-100, attach a copy of the notice to that complaint form, and provide all requested information about service on that form.)

d. Response to notice (check all that apply):

(1) ☐ Defendant (name each):

delivered a declaration of COVID-19-related financial distress on the landlord in the time required. (Code Civ. Proc., § 1179.03(f).)

(2) ☒ Defendant (name each):
ANTHONY DIMARCELLO

did *not* deliver a declaration of COVID-19-related financial distress on the landlord in the time required. (Code Civ. Proc., § 1179.03(f).)

e. ☐ Rent due (complete only if action filed after June 30, 2021):

(1) Rent in the amount of \$ _____ was due between September 1, 2020 and June 30, 2021.
(2) Payment of \$ _____ for that period was received by June 30, 2021.

8. **Service of Code of Civil Procedure Section 1179.04 Notice From the State of California** (check all that apply)

a. ☒ The notice identified in Item 6a and 7a was served on the defendant named in those items as follows:

(1) ☐ By personally handing a copy to defendant on (date):

(2) ☐ By leaving a copy with (name or description):

a person of suitable age and discretion, on (date): _____ at defendant's
☐ residence ☐ business AND mailing a copy to defendant at defendant's place of residence.

(3) ☒ By posting a copy on the premises on (date): 02/11/2021

☐ AND giving a copy to a person found residing at the premises AND mailing a copy to defendant at the premises on (date): 02/11/2021

(a) ☐ because defendant's residence and usual place of business cannot be ascertained OR

(b) ☒ because no person of suitable age or discretion can be found there.

(4) ☐ By sending a copy by mail addressed to the defendant on (date):

b. ☐ (Name):

was served on behalf of all defendants who signed a joint written rental agreement.

c. ☐ Information about service of notice on the defendants alleged in Items 6b and 7b is stated in Attachment 8c.

d. ☒ Proof of service of the notice or notices in Items 6a, 6b, 7a, and 7b is attached to this form and labeled Exhibit 1.

9. ☐ **High-income tenant.** The 15-day notice in Item 6c or 7c above identified defendant as a high-income tenant and requested submission of documentation supporting the tenant's claim that tenant had suffered COVID-19-related financial distress. Plaintiff had proof before serving that notice that the tenant has an annual income that is at least 130 percent of the median income for the county the rental property is located in and not less than \$100,000. (Code Civ. Proc., § 1179.02.5.)

a. ☐ The tenant did not deliver a declaration of COVID-19-related financial distress within the required time. (Code Civ. Proc., § 1179.03(f).)

b. ☐ The tenant did not deliver documentation within the required time supporting that the tenant had suffered COVID-19-related financial distress as asserted in the declaration. (Code Civ. Proc., § 1179.02.5(c).)

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10. ☒ **Just cause eviction.** (Only applicable if action is filed before July 1, 2021. Note: If the tenancy is subject to the Tenant Protection Act (including Civil Code section 1946.2), plaintiff must, if using form UD-100, complete item 8 on that form in addition to this item.)
- a. ☒ The tenancy identified in the unlawful detainer complaint in this action was terminated for at-fault just cause as defined in Civil Code section 1946.2(b)(1), which reason is in the notice of termination. (Code Civ. Proc., § 1179.03.5(a)(3)(A)(I).)
- b. ☐ The tenancy identified in the unlawful detainer complaint in this action was terminated for no-fault just cause as defined in Civil Code section 1946.2(b)(2), which reason is in the notice of termination. (Code Civ. Proc., § 1179.03.5(a)(3)(A)(II).) (Complete (1) or (2) below, only if applicable.)
- (1) ☐ The no-fault just cause is the intent to demolish or substantially remodel, which ☐ is ☐ is not necessary to comply with codes, statutes, or regulations relating to the habitability of the rental units. (Code Civ. Proc., § 1179.03.5(a)(3)(A)(II).)
- (2) ☐ The tenancy identified in the complaint in this action was terminated because the owner of the property has entered into a contract with a buyer who intends to occupy the property and the property ☐ does ☐ does not meet all the requirements of Civil Code section 1946.2(e)(8). (Code Civ. Proc., § 1179.03.5(a)(3)(A)(II)(I).)
- c. ☐ This action is based solely on the cause of termination checked in item 10a or b above, and is not for nonpayment of rent or other financial obligations. (If this item applies, plaintiff may not recover any rental debt due from the period between March 1, 2020, and June 30, 2021, as part of the damages in this action. (Code Civ. Proc., § 1179.03.5(a)(3)(B).))
11. ☐ **Rent or other financial obligations due after June 30, 2021.** (Only applicable if action is filed on or after July 1, 2021.) The only demand for rent or other financial obligations on which the unlawful detainer complaint in this action is based is a demand for payment of rent due after June 30, 2021.
12. ☒ Number of pages attached (specify): 3

Date: 04/20/2021

ARDEN HOANG, ESQ.
(TYPE OR PRINT NAME)

(SIGNATURE OF PLAINTIFF OR ATTORNEY)

VERIFICATION

(Use a different verification form if the verification is by an attorney or for a corporation or partnership.)

I am the plaintiff in this proceeding and have read this complaint. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(TYPE OR PRINT NAME)

(SIGNATURE)

VERIFICATION

I am employed by the property management company for the plaintiff in this action, and I make this verification for that reason and because I am more familiar with the facts alleged in the complaint than the plaintiff. I have read the foregoing Plaintiff's Mandatory Cover Sheet and Supplemental Allegations - Unlawful Detainer and know its contents. The same is true of my own knowledge, except as to the matters which are stated on information and belief, and as to those matters, I believe it to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on 5/15/2021 in Irvine, California.

Signature: _____



Print Name: Victor Nunez

Title: Assistant Community Manager

EXHIBIT “1”

[For Landlord Use Only]

PROOF OF SERVICE

Document(s) served: **INFORMATIONAL NOTICE OF COVID-19 TENANT RELIEF ACT EXTENSION
AND NEW RENTAL ASSISTANCE PROGRAM**

Parties served: Anthony DiMarcello
and all tenants, subtenants, and others in possession

Subject property: 212 Southbrook, Irvine, CA 92604

Date of service: February 11, 2021

I served copies of the above-referenced document(s) in the manner indicated below:

- ☐ **BY PERSONAL SERVICE.** On the date set forth above, I personally delivered copies of the document(s) to the following occupant(s): _____
- ☐ **BY SUBSTITUTED SERVICE.** On the date set forth above, I left copies of the document(s) for each of the above-referenced occupant(s) with _____, a person of suitable age and discretion at the residence or usual place of business of the occupant(s), each being absent therefrom (except to the extent any occupants were served by personal service, see above); AND I mailed copies to each occupant by first class mail on said date by depositing said copies in the United States Mail, in a sealed envelope, with postage fully prepaid, addressed to the above-named occupant(s) at their place of residence.
- ☒ **BY POSTING AND MAILING.** On the date set forth above, I posted copies of the document(s) in a conspicuous place on the above-referenced property, there being no person of suitable age or discretion to be found at any known place of residence or business of the occupant(s); AND I mailed copies to each occupant by first class mail on said date by depositing said copies in the United States Mail, in a sealed envelope, with postage fully prepaid, addressed to the above-named occupant(s) at the place where the property is situated.

At the time of service, I was at least 18 years of age.

I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct and if called as a witness to testify thereto, I could do so competently.

Executed this 11 day of February, 2021, in Irvine, CA.

Signature: _____

Print Name: Victor Nunez

SUMMONS
(CITACIÓN JUDICIAL)

UNLAWFUL DETAINER-EVICTION
(RETENCIÓN ILÍCITA DE UN INMUEBLE-DESALOJO)

SUM-130

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):

ANTHONY DIMARCELLO; AND DOES 1 TO 5

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):

WOODBIDGE MEADOWS APARTMENTS LLC DBA WOODBRIDGE

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 5 days. You have 5 DAYS, not counting Saturdays and Sundays and other judicial holidays, after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff.

A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (www.courts.ca.gov/selfhelp), your county law library, or the courthouse nearest you. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services website (www.lawhelpca.org), the California Courts Online Self-Help Center (www.courts.ca.gov/selfhelp), or by contacting your local court or county bar association.

FEE WAIVER: If you cannot pay the filing fee, ask the clerk for a fee waiver form. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of \$10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.

¡AVISO! Usted ha sido demandado. Si no responde dentro de 5 días, el tribunal puede emitir un fallo en su contra sin una audiencia. Una vez que le entreguen esta citación y papeles legales, solo tiene 5 DÍAS, sin contar sábado y domingo y otros días feriados del tribunal, para presentar una respuesta por escrito en este tribunal y hacer que se entregue una copia al demandante.

Una carta o una llamada telefónica no lo protege. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no presenta su respuesta a tiempo, puede perder el caso por falta de comparecencia y se le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados local.

EXENCIÓN DE CUOTAS: Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. **AVISO:** Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos con un gravamen sobre cualquier cantidad de \$10,000 ó más recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desestimar el caso.

1. The name and address of the court is:
(El nombre y dirección de la corte es):

CASE NUMBER (Número del caso):
30-2021-01201327-CL-UD-CJC

CENTRAL JUSTICE CENTER, COUNTY OF ORANGE
700 CIVIC CENTER DRIVE WEST
SANTA ANA, CA 92701

Assigned for all purposes Judge Carmen Luege

2. The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is: (El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
ARDEN HOANG, ESQ.
16520 BAKE PARKWAY, SUITE 280
IRVINE, CA 92618
RUZICKA, WALLACE & COUGHLIN, LLP.
(949) 759-1080

PLAINTIFF (Name): WOODBRIDGE MEADOWS APARTMENTS LLC DBA WOODBRIDGE	CASE NUMBER:
DEFENDANT (Name): ANTHONY DIMARCELLO	30-2021-01201327-CL-UD-CJC

3. (Must be answered in all cases) An unlawful detainer assistant (Bus. & Prof. Code, §§ 6400-6415) ☒ did not ☐ did for compensation give advice or assistance with this form. (If plaintiff has received any help or advice for pay from an unlawful detainer assistant, complete item 6 on the next page.)

4. Unlawful detainer assistant (complete if plaintiff has received any help or advice for pay from an unlawful detainer assistant):

- a. Assistant's name:
- b. Telephone no.:
- c. Street address, city, and zip:

- d. County of registration:
- e. Registration no.:
- f. Registration expires on (date):

Date:
(Fecha) 05/18/2021

David H. Yamasaki, Clerk of the Court

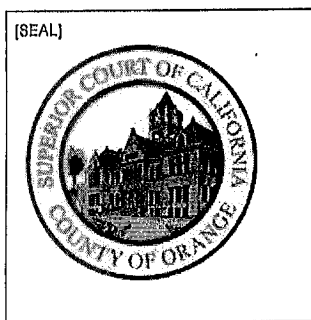
Clerk, by
(Secretario)

D. Cuevas

D. Cuevas
, Deputy
(Adjunto)

(For proof of service of this summons, use Proof of Service of Summons (form POS-010).)

(Para prueba de entrega de esta citación use el formulario Proof of Service of Summons, (form POS-010)).



5. NOTICE TO THE PERSON SERVED: You are served

- a. ☐ as an individual defendant.
- b. ☐ as the person sued under the fictitious name of (specify):
- c. ☐ as an occupant.
- d. ☐ on behalf of (specify):
 under: ☐ CCP 416.10 (corporation). ☐ CCP 416.60 (minor).
☐ CCP 416.20 (defunct corporation). ☐ CCP 416.70 (conservatee).
☐ CCP 416.40 (association or partnership). ☐ CCP 416.90 (authorized person).
☐ CCP 415.46 (occupant). ☐ other (specify):
- e. ☐ by personal delivery on (date):

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 DEFENDANT: ANTHONY DIMARCELLO

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6. a. On or about (date): 09/20/2020

defendant (name each):

ANTHONY DIMARCELLO

- (1) agreed to rent the premises as a ☐ month-to-month tenancy ☒ other tenancy (specify): 13 MONTH LEASE
 (2) agreed to pay rent of \$ 2,072.00 payable ☒ monthly ☐ other (specify frequency):
 (3) agreed to pay rent on the ☒ first of the month ☐ other day (specify):
 b. This ☒ written ☐ oral agreement was made with
 (1) ☒ plaintiff. (3) ☐ plaintiff's predecessor in interest.
 (2) ☐ plaintiff's agent. (4) ☐ Other (specify):
 c. ☒ The defendants not named in item 6a are
 (1) ☐ subtenants.
 (2) ☐ assignees.
 (3) ☒ Other (specify): UNAUTHORIZED OCCUPANTS
 d. ☐ The agreement was later changed as follows (specify):
 e. ☐ A copy of the written agreement, including any addenda or attachments that form the basis of this complaint, is attached and labeled Exhibit 1. (Required for residential property, unless item 6f is checked. See Code Civ. Proc., § 1166.)
 f. ☒ (For residential property) A copy of the written agreement is not attached because (specify reason):
 (1) ☐ the written agreement is not in the possession of the landlord or the landlord's employees or agents.
 (2) ☒ this action is solely for nonpayment of rent (Code Civ. Proc., § 1161(2)).

7. The tenancy described in 6 (complete (a) or (b))

- a. ☐ Is not subject to the Tenant Protection Act of 2019 (Civil Code, § 1946.2). The specific subpart supporting why tenancy is exempt is (specify):
 b. ☒ Is subject to the Tenant Protection Act of 2019.

8. (Complete only if item 7b is checked. Check all applicable boxes.)

- a. ☒ The tenancy was terminated for at-fault just cause (Civil Code, § 1946.2(b)(1)).
 b. ☐ The tenancy was terminated for no-fault just cause (Civil Code, § 1946.2(b)(2)) and the plaintiff (check one)
 (1) ☐ waived the payment of rent for the final month of the tenancy, before the rent came due, under section 1946.2(d)(2), in the amount of \$
 (2) ☐ provided a direct payment of one month's rent under section 1946.2(d)(3), equaling \$
 to (name each defendant and amount given to each):

- c. ☐ Because defendant failed to vacate, plaintiff is seeking to recover the total amount in 8b as damages in this action.

9. a. ☒ Defendant (name each): ANTHONY DIMARCELLO

was served the following notice on the same date and in the same manner:

- (1) ☐ 3-day notice to pay rent or quit (5) ☐ 3-day notice to perform covenants or quit
 (2) ☐ 30-day notice to quit (not applicable if item 7b checked)
 (3) ☐ 60-day notice to quit (6) ☐ 3-day notice to quit under Civil Code, § 1946.2(c)
 (4) ☐ 3-day notice to quit Prior required notice to perform covenants served (date):
 (7) ☒ Other (specify): 15/30 DAY NOTICE TO PAY OR QUIT

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 DEFENDANT: ANTHONY DIMARCELLO

CASE NUMBER:

9. b. (1) On (date): 04/18/2021 the period stated in the notice checked in 9a expired at the end of the day.
 (2) Defendants failed to comply with the requirements of the notice by that date.
 c. All facts stated in the notice are true.
 d. ☒ The notice included an election of forfeiture.
 e. ☒ A copy of the notice is attached and labeled Exhibit 2. (Required for residential property. See Code Civ. Proc., § 1166. When Civil Code, § 1946.2(c), applies and two notices are required, provide copies of both.)
 f. ☐ One or more defendants were served (1) with the prior required notice under Civil Code, § 1946.2(c), (2) with a different notice, (3) on a different date, or (4) in a different manner, as stated in Attachment 10c. (Check Item 10c and attach a statement providing the information required by items 9a-e and 10 for each defendant and notice.)
10. a. ☒ The notice in Item 9a was served on the defendant named in Item 9a as follows:
 (1) ☐ By personally handing a copy to defendant on (date):
 (2) ☐ By leaving a copy with (name or description):
 a person of suitable age and discretion, on (date): at defendant's
☐ residence ☐ business AND mailing a copy to defendant at defendant's place of residence
 on (date): because defendant cannot be found at defendant's residence or usual place of business.
 (3) ☒ by posting a copy on the premises on (date): 03/18/2021
☐ AND giving a copy to a person found residing at the premises AND mailing a copy to defendant at the premises
 on (date): 03/18/2021
 (a) ☐ because defendant's residence and usual place of business cannot be ascertained OR
 (b) ☒ because no person of suitable age or discretion can be found there.
 (4) ☐ (Not for 3-day notice; see Civil Code, § 1946, before using) By sending a copy by certified or registered mail
 addressed to defendant on (date):
 (5) ☐ (Not for residential tenancies; see Civil Code, § 1953, before using) In the manner specified in a written
 commercial lease between the parties
- b. ☐ (Name):
 was served on behalf of all defendants who signed a joint written rental agreement.
 c. ☐ Information about service of notice on the defendants alleged in Item 9f is stated in Attachment 10c.
 d. ☒ Proof of service of the notice in Item 9a is attached and labeled Exhibit 3.
11. ☐ Plaintiff demands possession from each defendant because of expiration of a fixed-term lease.
 12. ☒ At the time the ^{15/30 day} notice to pay rent or quit was served, the amount of rent due was \$ 2,072.00
 13. ☒ The fair rental value of the premises is \$ 69.06 per day.
 14. ☐ Defendant's continued possession is malicious, and plaintiff is entitled to statutory damages under Code of Civil Procedure section 1174(b). (State specific facts supporting a claim up to \$600 in Attachment 14.)
 15. ☒ A written agreement between the parties provides for attorney fees.
 16. ☐ Defendant's tenancy is subject to the local rent control or eviction control ordinance of (city or county, title of ordinance, and date of passage):

Plaintiff has met all applicable requirements of the ordinances.

17. ☒ Other allegations are stated in Attachment 17.
 18. Plaintiff accepts the jurisdictional limit, if any, of the court.

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 DEFENDANT: ANTHONY DIMARCELLO

CASE NUMBER:

19. PLAINTIFF REQUESTS

- a. possession of the premises.
 b. costs incurred in this proceeding:
 c. ☒ past-due rent of \$ 2,072.00
 d. ☒ reasonable attorney fees.
 e. ☒ forfeiture of the agreement.
 f. ☐ damages in the amount of waived rent or relocation assistance as stated in item 8: \$
 g. ☒ damages at the rate stated in item 13 from (date): 04/01/2021 for each day that defendants remain in possession through entry of judgment.
 h. ☐ statutory damages up to \$600 for the conduct alleged in item 14.
 i. ☒ other (specify): SUCH OTHER AND FURTHER RELIEF THE COURT MAY DEEM JUST AND PROPER.

20. ☒ Number of pages attached (specify): 10

UNLAWFUL DETAINER ASSISTANT (Bus. & Prof. Code, §§ 6400-6415)

21. ☒ (Complete in all cases.) An unlawful detainer assistant ☒ did not ☐ did for compensation give advice or assistance with this form. (If declarant has received any help or advice for pay from an unlawful detainer assistant, complete a-f.)

- a. Assistant's name:
 b. Street address, city, and zip code:
 c. Telephone no.:
 d. County of registration:
 e. Registration no.:
 f. Expires on (date):

Date: 04/20/2021

ARDEN HOANG, ESQ.

(TYPE OR PRINT NAME)

(SIGNATURE OF PLAINTIFF OR ATTORNEY)

VERIFICATION

(Use a different verification form if the verification is by an attorney or for a corporation or partnership.)

I am the plaintiff in this proceeding and have read this complaint. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

(TYPE OR PRINT NAME)

(SIGNATURE OF PLAINTIFF)

ATTACHMENT 17

INFORMATIONAL NOTICE OF TEMPORARY EVICTION PROTECTIONS

In accordance with Federal law, defendant(s) are hereby notified of the following:

Because of the global COVID-19 pandemic, you may be eligible for temporary protection from eviction under the laws of your State, territory, locality, or tribal area, or under Federal law.

Learn the steps you should take now:

- Visit www.cfpb.gov/eviction
- Or call a housing counselor at 800-569-4287

This attachment is for informational purposes only. Nothing contained in this attachment is intended as, or shall constitute, an admission or waiver of any kind.

VERIFICATION

I am employed by the property management company for the plaintiff in this action, and I make this verification for that reason and because I am more familiar with the facts alleged in the complaint than the plaintiff. I have read the foregoing Complaint - Unlawful Detainer and know its contents. The same is true of my own knowledge, except as to the matters which are stated on information and belief, and as to those matters, I believe it to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: 5/15/2021 in Irvine, California.

Signature: _____



Print Name: Victor Nunez

Title: Assistant Community Manager

EXHIBIT “2”

**NOTICE TO PAY RENT IN 15 DAYS
OR QUIT IN 30 DAYS
(Covered by CARES Act)
WITH BLANK DECLARATION OF COVID-19-RELATED FINANCIAL DISTRESS
(Rent Due September 1, 2020 - June 30, 2021)**

TO: Anthony Dimarcello
and all tenants, subtenants and any others in possession

SUBJECT PREMISES: 212 Southbrook, Irvine, CA 92604

You currently owe the total sum of **\$3,516.00**, for rent for the period beginning September 1, 2020 through the date of this notice, calculated as follows:

February

\$1,444.00, which came due February 1, 2021 for the rental period from 02/01/2021 through 02/28/2021.

☒ Declaration of COVID-19 Related Financial Distress (and documentation, if required) previously submitted for February 2021.

March

\$2,072.00, which came due March 1, 2021 for the rental period from 03/01/2021 through 03/31/2021.

☐ Declaration of COVID-19 Related Financial Distress (and documentation, if required) previously submitted for March 2021.

[continued on next page]

WITHIN FIFTEEN (15) DAYS, not including Saturdays, Sundays, or other judicial holidays, after the service on you of this Notice, you are required to:

1. Pay the sum of **\$2,072.00**, which is the rent due for the months indicated above for which a Declaration of COVID-19-Related Financial Distress (and documentation, if required) has not been provided;
OR
2. Complete the attached declaration, sign it under penalty of perjury and deliver the declaration (and documentation if required) to the landlord as provided below. Be advised that no later than June 30, 2021, you must pay 25% of the total sum for all periods above for which you have provided a declaration (and documentation if required) or your landlord may, on or after July 1, 2021, file an unlawful detainer action against you for nonpayment of that rent.

IF YOU FAIL TO TAKE THE ACTION SPECIFIED IN EITHER 1 OR 2 ABOVE, YOU MUST QUIT AND DELIVER POSSESSION OF THE SUBJECT PREMISES WITHIN THIRTY (30) CALENDAR DAYS AFTER THE SERVICE ON YOU OF THIS NOTICE.

If you fail to perform or otherwise comply, legal proceedings will be commenced against you to declare a forfeiture of your lease/rental agreement, to recover possession of the subject premises, and to seek a money judgment for the rent demanded herein and damages for each day that you occupy the subject premises after the period(s) covered by this notice. Such a judgment against you may include attorney fees and costs as allowed by law or contract and statutory damages of up to \$600.00. As required by law, you are hereby notified that a negative credit report reflecting on your credit record may be submitted to a credit reporting agency if you fail to fulfill the terms of your credit obligations.

Further, if you fail to perform or otherwise comply, the undersigned declares a forfeiture of the lease or rental agreement under which you hold possession of the subject premises.

This notice does not demand rent payments that came due prior to September 1, 2020. Any amounts you may owe prior to September 1, 2020 are not waived and the landlord reserves all rights and remedies with respect to those amounts. Nothing contained in this notice is intended as, or shall constitute, a waiver of any kind.

Payment must be made by personal check, cashier's check, or money order, payable to "Woodbridge" and must be delivered to any authorized office personnel at Woodbridge, 50 Eastshore, Irvine, CA 92604; Telephone number: (949) 551-4752. An authorized representative will be available to accept payment from 9:00 a.m. to 5:00 p.m. Monday through Saturday and from 12:00 p.m. to 5:00 p.m. on Sunday.

[continued on next page]

NOTICE FROM THE STATE OF CALIFORNIA

If you are unable to pay the amount demanded in this notice, and have decreased income or increased expenses due to COVID-19, you may sign and deliver the declaration form included with your notice to your landlord within 15 days, excluding Saturdays, Sundays, and other judicial holidays, and your landlord will not be able to evict you for this missed payment so long as you make the minimum payment (see below). You will still owe this money to your landlord. You should keep a copy or picture of the signed form for your records.

If you provide the declaration form to your landlord as described above AND, on or before June 30, 2021, you pay an amount that equals at least 25 percent of each rental payment that came due or will come due during the period between September 1, 2020, and June 30, 2021, that you were unable to pay as a result of decreased income or increased expenses due to COVID-19, your landlord cannot evict you. Your landlord may require you to submit a new declaration form for each rental payment that you do not pay that comes due between September 1, 2020, and June 30, 2021.

If you were unable to pay any of the rental payments that came due between September 1, 2020, and June 30, 2021, and you provided your landlord with the declarations in response to each 15-day notice your landlord sent to you during that time period, your landlord could not evict you if, on or before June 30, 2021, you paid your landlord an amount equal to 25 percent of all the rental payments due from September 2020 through June 2021.

You will still owe the full amount of the rent to your landlord, but you cannot be evicted from your home if you comply with these requirements. You should keep careful track of what you have paid and any amount you still owe to protect your rights and avoid future disputes. Failure to respond to this notice may result in an unlawful detainer action (eviction) being filed against you.

YOU MAY QUALIFY FOR RENTAL ASSISTANCE. In addition to extending these eviction protections, the State of California, in partnership with federal and local governments, has created an emergency rental assistance program to assist renters who have been unable to pay their rent and utility bills as a result of the COVID-19 pandemic. This program may be able to help you get caught up with past-due rent. Additionally, depending on the availability of funds, the program may also be able to assist you with making future rental payments.

While not everyone will qualify for this assistance, you can apply for it regardless of your citizenship or immigration status. There is no charge to apply for or receive this assistance.

Additional information about the extension of the COVID-19 Tenant Relief Act and new state or local rental assistance programs, including more information about how to qualify for assistance, can be found by visiting <http://housingkey.com> or by calling 1-833-422-4255.

You may deliver the attached declaration of COVID-19-related financial distress to the landlord by any of the following methods:

- (1) In person at the following address: 50 Eastshore, Irvine, CA 92604;
- (2) By electronic transmission to the following email address:
woodbridge@sheeapartments.com;
- (3) Through United States mail to the following address: 50 Eastshore, Irvine, CA 92604; or
- (4) Through any of the same methods you can use to deliver the payment pursuant to this notice if delivery of the declaration by that method is possible.

LANDLORD

DATE: March 18, 2021



Shea Properties Management Company, Inc.,
authorized agent for Landlord/Owner

[continued on next page]

DECLARATION OF COVID-19 RELATED FINANCIAL DISTRESS
(Rent Due September 1, 2020 - June 30, 2021)

I am currently unable to pay my rent or other financial obligations under the lease in full because of one or more of the following:

1. Loss of Income caused by the COVID-19 pandemic.
2. Increased out-of-pocket expenses directly related to performing essential work during the COVID-19 pandemic.
3. Increased expenses directly related to health impacts of the COVID-19 pandemic.
4. Childcare responsibilities or responsibilities to care for an elderly, disabled, or sick family member directly related to the COVID-19 pandemic that limit my ability to earn income.
5. Increased costs for childcare or attending to an elderly, disabled, or sick family member directly related to the COVID-19 pandemic.
6. Other circumstances related to the COVID-19 pandemic that have reduced my income or increased my expenses.

Any public assistance, including unemployment insurance, pandemic unemployment assistance, state disability insurance (SDI), or paid family leave, that I have received since the start of the COVID-19 pandemic does not fully make up for my loss of income and/or increased expenses.

Signed under penalty of perjury: _____ / _____
Resident Signature Print Name

Dated: _____

EXHIBIT “3”

[For Landlord Use Only]

PROOF OF SERVICE

Document(s) served: **NOTICE TO PAY RENT IN 15 DAYS OR QUIT IN 30 DAYS (Covered by CARES Act) WITH BLANK DECLARATION OF COVID-19-RELATED FINANCIAL DISTRESS (Rent Due September 1, 2020 - June 30, 2021)**

Parties served: Anthony Dimarcello
and all tenants, subtenants, and others in possession

Subject property: 212 Southbrook, Irvine, CA 92604

Date of service: March 18, 2021

I served copies of the above-referenced document(s) in the manner indicated below:

- ☐ **BY PERSONAL SERVICE.** On the date set forth above, I personally delivered copies of the document(s) to the following occupant(s): _____
- ☐ **BY SUBSTITUTED SERVICE.** On the date set forth above, I left copies of the document(s) for each of the above-referenced occupant(s) with _____, a person of suitable age and discretion at the residence or usual place of business of the occupant(s), each being absent therefrom (except to the extent any occupants were served by personal service, see above); AND I mailed copies to each occupant by first class mail on said date by depositing said copies in the United States Mail, in a sealed envelope, with postage fully prepaid, addressed to the above-named occupant(s) at their place of residence.
- ☒ **BY POSTING AND MAILING.** On the date set forth above, I posted copies of the document(s) in a conspicuous place on the above-referenced property, there being no person of suitable age or discretion to be found at any known place of residence or business of the occupant(s); AND I mailed copies to each occupant by first class mail on said date by depositing said copies in the United States Mail, in a sealed envelope, with postage fully prepaid, addressed to the above-named occupant(s) at the place where the property is situated.

At the time of service, I was at least 18 years of age.

I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct and if called as a witness to testify thereto, I could do so competently.

Executed on 18 day of March, 2021, in Irvine, CA.

Signature: _____

Print Name: _____

Victor Nunez

NOTICE: EVERYONE WHO LIVES IN THIS RENTAL UNIT MAY BE EVICTED BY COURT ORDER. READ THIS FORM IF YOU LIVE HERE AND IF YOUR NAME IS NOT ON THE ATTACHED SUMMONS AND COMPLAINT.

1. If you live here and you do not complete and submit this form, you may be evicted without further hearing by the court along with the persons named in the Summons and Complaint.
2. You must file this form within 10 days of the date of service listed in the box on the right hand side of this form.
 - **Exception:** If you are a tenant being evicted after your landlord lost the property to foreclosure, the 10-day deadline does not apply to you and you may file this form at any time before judgment is entered.
3. If you file this form, your claim will be determined in the eviction action against the persons named in the complaint.
4. If you do not file this form, you may be evicted without further hearing.
5. If you are a tenant being evicted due to foreclosure, you have additional rights and should seek legal advice immediately.

CLAIMANT OR CLAIMANT'S ATTORNEY (Name and Address):		TELEPHONE NO.:	FOR COURT USE ONLY
ATTORNEY FOR (Name):			
NAME OF COURT: CENTRAL JUSTICE CENTER, COUNTY OF ORANGE			
STREET ADDRESS: 700 CIVIC CENTER DRIVE WEST			
MAILING ADDRESS:			
CITY AND ZIP CODE: SANTA ANA, CA 92701			
BRANCH NAME: CENTRAL JUSTICE CENTER			
Plaintiff: WOODBRIDGE MEADOWS APARTMENTS LLC DBA WOODBRIDGE			
Defendant: ANTHONY DIMARCELLO			
PREJUDGMENT CLAIM OF RIGHT TO POSSESSION			CASE NUMBER:
Complete this form only if ALL of these statements are true: 1. You are NOT named in the accompanying Summons and Complaint. 2. You occupied the subject premises on or before the date the unlawful detainer (eviction) complaint was filed. (The date is in the accompanying Summons and Complaint.) 3. You still occupy the subject premises.			(To be completed by the process server) DATE OF SERVICE: (Date that form is served or delivered, posted, and mailed by the officer or process server)

I DECLARE THE FOLLOWING UNDER PENALTY OF PERJURY:

1. My name is (specify):
2. I reside at (street address, unit no., city and ZIP code):
212 SOUTHBROOK
IRVINE CA 92604
3. The address of "the premises" subject to this claim is (address):
212 SOUTHBROOK
IRVINE CA 92604
4. On (insert date): , the landlord or the landlord's authorized agent filed a complaint to recover possession of the premises. (This date is in the accompanying Summons and Complaint.)
5. I occupied the premises on the date the complaint was filed (the date in item 4). I have continued to occupy the premises ever since.
6. I was at least 18 years of age on the date the complaint was filed (the date in item 4).
7. I claim a right to possession of the premises because I occupied the premises on the date the complaint was filed (the date in item 4).
8. I was not named in the Summons and Complaint.
9. I understand that if I make this claim of possession, I will be added as a defendant to the unlawful detainer (eviction) action.
10. (Filing fee) I understand that I must go to the court and pay a filing fee of \$ or file with the court an "Application for Waiver of Court Fees and Costs." I understand that if I don't pay the filing fee or file the form for waiver of court fees, I will not be entitled to make a claim of right to possession.

(Continued on reverse)

Plaintiff: WOODBRIDGE MEADOWS APARTMENTS LLC DBA WOODBRIDGE	CASE NUMBER:
Defendant: ANTHONY DIMARCELLO	

11. If my landlord lost this property to foreclosure, I understand that I can file this form at any time before judgment is entered, and that I have additional rights and should seek legal advice.
12. I understand that I will have *five days* (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form.

NOTICE: If you fail to file this claim, you will be evicted without further hearing.

13. **Rental agreement.** I have (*check all that apply to you*):

- a. ☐ an oral or written rental agreement with the landlord.
- b. ☐ an oral or written rental agreement with a person other than the landlord.
- c. ☐ an oral or written rental agreement with the former owner who lost the property to foreclosure.
- d. ☐ other (*explain*):

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

WARNING: Perjury is a felony punishable by imprisonment in the state prison.

Date:

(TYPE OR PRINT NAME)

(SIGNATURE OF CLAIMANT)

NOTICE: If you file this claim to possession, the unlawful detainer action against you will be determined at trial. At trial, you may be found liable for rent, costs, and, in some cases, treble damages.

- NOTICE TO OCCUPANTS -

YOU MUST ACT AT ONCE if all the following are true:

1. You are **NOT** named in the accompanying Summons and Complaint.
2. You occupied the premises on or before the date the unlawful detainer (eviction) complaint was filed.
3. You still occupy the premises.

You can complete and SUBMIT THIS CLAIM FORM WITHIN 10 DAYS from the date of service (on the form) at the court where the unlawful detainer (eviction) complaint was filed. If you are a tenant and your landlord lost the property you occupy through foreclosure, this 10-day deadline does not apply to you. You may file this form at any time before judgment is entered. You should seek legal advice immediately.

If you do not complete and submit this form (and pay a filing fee or file a fee waiver form if you cannot pay the fee), **YOU WILL BE EVICTED.**

After this form is properly filed, you will be added as a defendant in the unlawful detainer (eviction) action and your right to occupy the premises will be decided by the court. *If you do not file this claim, you may be evicted without a hearing.*